

Court No. - 37

Case :- WRIT - C No. - 44117 of 2012

Petitioner :- Raj Kumar Didwania

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

As prayed by Shri Mahboob Ahmad, put up this case on 13th September, 2012 as fresh.

Order Date :- 3.9.2012

S.Prakash

Court No. - 37

Case :- WRIT - C No. - 44117 of 2012

Petitioner :- Raj Kumar Didwania

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner, Shri Mahboob Ahmad appears for respondent nos. 2 and 3 and learned Standing Counsel.

Short counter affidavit filed today on behalf of respondent no. 3 is taken on record.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 19th May, 2012 issued by Executive Engineer for recovery of electricity dues from the petitioner.

Shri B.C. Rai, learned counsel for the petitioner submits that the calculation of the amount has erroneously been made disregarding the provisions of U.P. Electricity Supply Code, 2005. He further submits that factor 'F' has been wrongly applied.

A short counter affidavit has been filed in which it has been stated that decision has been taken to withdraw the demand notice, since it was issued only after provisional assessment.

Learned counsel for the respondents submits that petitioner may file an objection against the provisional assessment which shall be considered and an appropriate decision shall be taken by the Executive Engineer.

In view of the aforesaid, as the demand notice having been decided to be withdrawn, the main relief in the writ petition has now become infructuous. Against the provisional assessment, the petitioner may file an appropriate written objection before the Executive Engineer within the date fixed. The Executive Engineer shall take an appropriate decision for finalizing the assessment within a period of two weeks from the date of the objection filed on behalf of the petitioner.

With these observations, the writ petition is disposed of.

Order Date :- 13.9.2012/S.Prakash